

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 999

Introduced by Spivey, 13; Ibach, 44.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to business; to adopt the Business Innovation
- 2 and Startup Commission Act.
- 3 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) Sections 1 to 5 of this act shall be known and may
2 be cited as the Business Innovation and Startup Commission Act.

3 (2) The purposes of the Business Innovation and Startup Commission
4 Act are to:

5 (a) Create the Business Innovation and Startup Commission to provide
6 for general planning, coordination, and an operating program to support
7 entrepreneurship, startups, and business innovation in Nebraska;

8 (b) Provide for grants and other assistance for the purpose of
9 expanding access to capital, commercialization, and business development
10 services as part of a comprehensive statewide innovation ecosystem; and

11 (c) Authorize collaboration with state agencies, political
12 subdivisions, educational institutions, and private partners for the
13 purpose of strengthening and aligning Nebraska's startup and innovation
14 infrastructure.

15 **Sec. 2.** (1) The Business Innovation and Startup Commission is
16 hereby created.

17 (2) The purpose of the commission is to champion business and
18 innovation in Nebraska including making recommendations regarding
19 policies, programs, and regulatory structures that promote economic
20 growth through, but not limited to, business formation and startup
21 success, innovation and entrepreneurship, and a comprehensive approach to
22 resilient economic systems in Nebraska.

23 (3) The commission shall consist of the following members:

24 (a) Each chief executive officer or director of the state innovation
25 hubs;

26 (b) One member that is the chief executive officer, founder, or
27 principal owner of a business with five million dollars or less in annual
28 revenue and operates in a rural area of the state appointed by the
29 Governor;

30 (c) One member representing a chamber of commerce appointed by the
31 Governor;

1 (d) One member representing an economic development corporation
2 appointed by the Governor;

3 (e) One member representing a Nebraska-based venture capital fund,
4 angel investment network, or startup financing organization with
5 demonstrated experience investing in early-stage companies appointed by
6 the Governor;

7 (f) One member representing a research university or community
8 college engaged in applied research, commercialization, or workforce-
9 aligned innovation appointed by the Governor;

10 (g) One member representing a manufacturing, agricultural
11 technologies, or industry innovation sector critical to Nebraska's
12 economy appointed by the Governor;

13 (h) One member representing a community-based or minority-serving
14 organization with demonstrated experience supporting underrepresented
15 entrepreneurs or small businesses appointed by the Governor;

16 (i) One member representing the Department of Economic Development,
17 who shall serve as a nonvoting, ex officio member; and

18 (j) One member representing the Department of Labor, who shall serve
19 as a nonvoting, ex officio member.

20 (4) Appointments shall be made within sixty days after the effective
21 date of this act.

22 (5) The members of the commission shall serve for a term of four
23 years with a maximum of two terms and shall serve without compensation,
24 but may be reimbursed for expenses as provided in sections 81-1174 to
25 81-1177.

26 (6) The commission shall elect a chairperson and vice-chairperson
27 from among its members.

28 (7) The commission shall meet at least quarterly and may meet more
29 frequently at the call of the chairperson. A majority of the members of
30 the commission shall constitute a quorum for the purpose of transacting
31 business.

1 **Sec. 3.** The Business Innovation and Startup Commission shall:

2 (1) Develop, administer, coordinate, and evaluate programs and
3 initiatives that support business formation, startup growth, innovation,
4 and entrepreneurship in Nebraska;

5 (2) Evaluate barriers to business formation and growth, including
6 regulatory, financing, workforce, and infrastructure barriers;

7 (3) Examine access to capital for startups and small emerging
8 businesses, including debt, equity, seed, and alternative financing
9 tools;

10 (4) Study best practices from other states related to innovation
11 policy, startup ecosystems, and emerging industries;

12 (5) Review and assess existing state programs and policies related
13 to economic development, innovation, and entrepreneurship in order to
14 align state economic development incentives with startup and innovation
15 driven enterprises;

16 (6) Make recommendations for statutory, regulatory, or
17 administrative changes to the Governor and Legislature to improve
18 Nebraska's business innovation environment;

19 (7) Study and implement best practices and strategies from other
20 states related to innovation policy, startup ecosystems, and emerging
21 industries to promote commercialization of research, technology transfer,
22 and high-growth entrepreneurship;

23 (8) Develop and administer grant programs using appropriated funds
24 or other available resources to support startup formation, business
25 innovation, commercialization, access to capital, and technical
26 assistance;

27 (9) Coordinate with state agencies, political subdivisions,
28 educational institutions, nonprofit organizations, and private-sector
29 partners to better coordinate a comprehensive statewide business
30 innovation and startup ecosystem, including identifying existing
31 programs, gaps, and redundancies and recommending strategies to improve

1 alignment and accessibility; and

2 (10) Support regional and sector-based innovation hubs, including
3 incubators, accelerators, and entrepreneurial support organizations,
4 through partnerships, technical assistance, and targeted grants in both
5 urban and rural areas.

6 **Sec. 4.** The Business Innovation and Startup Fund is created. The
7 fund shall consist of funds transferred by the Legislature. The Business
8 Innovation and Startup Commission shall use the fund for the purpose of
9 implementing the Business Innovation and Startup Commission Act. Any
10 money in the fund available for investment shall be invested by the state
11 investment officer pursuant to the Nebraska Capital Expansion Act and the
12 Nebraska State Funds Investment Act.

13 **Sec. 5.** (1) On or before December 1, 2027, and on or before
14 December 1 of each year thereafter, the Business Innovation and Startup
15 Commission shall submit a report of its activities, findings, and
16 recommendations electronically to the Legislature.

17 (2) Each report shall include:

18 (a) A summary of the commission's activity during the preceding
19 year;

20 (b) An accounting of grant awards and other financial assistance;

21 (c) An evaluation of progress toward the development of a
22 comprehensive and inclusive business innovation and startup ecosystem;

23 (d) Measurable outcomes related to startup formation, business
24 growth, access to capital, geographic distribution, and participation by
25 underserved or underrepresented communities; and

26 (e) Any recommendations for statutory, regulatory, or budgetary
27 changes necessary to improve the effectiveness of the commission's
28 programs and mission.